

PROMISSORY NOTE

Date: _____

For value received, the undersigned, Nicholas C. Yeager (the "Borrower") a married man and co-owner of the property located 1000 Roller Coaster Road, Tucson, Arizona, 85704 ("Property") promises to pay to the order of Jurg and Joanne L. Heuberger (the "Lenders"), at 3816 Via Palo Verde Lago, Alpine, CA. 91901, the sum of Fifty-Five Thousand entitled "Net Cost for Home Improvement" namely for the addition of a bedroom, bathroom and closet.

Terms:

- 1) **Payment of Principal.** The principal amount of the Promissory Note (the "Note") shall be due and payable on the first day of each month at the rate of Five Hundred dollars (\$500) per month until the loan is paid. Borrower agrees to repay the remaining principal balance from the proceeds of the sale of property identified as the farm land which is jointly owned by Borrower, Nicholas Jurg Heuberger and Lenders, if and when the property is sold (if the Note has not been fully paid prior to such sale). Borrowers share of the farm land is considered to be the collateral for this promissory note.
- 2) **In consideration for this loan,** Borrower agrees to pay Lenders a flat one time loan fee of 10% of the actual amount borrowed. This fee is added to the principal of the loan.
- 3) **Failure to Pay.** If any installment payment due under Note is not received within ten (10) days of its due date, Lenders have the option of charging a late fee of twenty-five dollars (\$25.00).
- 4) **Notification:** Borrower agrees to make all primary loan payments. If Borrower is unable to make such payment, Borrower agrees to immediately notify Lenders.
- 5) **Prepayment.** Borrower has the right at any time to prepay the Note in whole or part without bonus or penalty.
- 6) **California Law:** Note shall be construed in accordance with and governed by the laws of the State of California.
- 5) In the event Lenders prevail in a lawsuit to collect on it, Borrower agrees to pay Lenders to collect on it, Borrower agrees to pay Lenders' attorneys fees in an amount the court finds reasonable.

4) Benefit of Note: This Note shall enure to the benefit of and be binding upon the respective heirs, executors, administrators, successors, and assigns of the Borrower and the Lender. Should both Lenders predecease before the full amount of the Note has been paid, the remaining balance of the loan shall be deducted from Lender's share of the estate.

IN WITNESS WHEREOF, Borrower has duly affected his signatures on the
1st day of September 2025.

BORROWER:

Nicholas C. Yeager

Nick Yeager

Address: 1000 W. Roller Coaster Road Tucson,
AZ 85704

IN WITNESS WHEREOF, Lenders have affected their signatures on the
1st day of September 2025.

LENDERS:

Joanne Heuberger

Jurg Heuberger

3816 Via Palo Verde Lago
Alpine, California, 91901